9 The heading is amended as follows:
"Issue or endorsement of Certificates"
10 The following sub-heading is added at the beginning of the regulation :
"International Air Pollution Prevention Certificate"
11 Paragraph 2 is amended as follows:
"2 A ship constructed before the date this Annex enters into force for that particular ship's Administration , shall be issued with an International Air Pollution Prevention Certificate in accordance with paragraph 1 of this regulation no later than

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SOURCE: MEPC.203(62).pdf
particular ship's Administration , shall be issued with an International Air Pollution Prevention Certificate in accordance with paragraph 1 of this regulation no later than the first scheduled dry-docking after the date of such entry into force, but in no case later than three years after this date."
12 The following is added at the end of the regulation :
"International Energy Efficiency Certificate
4 An International Energy Efficiency Certificate for the ship shall be issued after a survey in accordance with the provisions of regulation 5.4 of this Annex to any ship of 400 gross tonnage and above before that ship may engage in voyages to ports or offshore terminals under the jurisdiction of other Parties .
5 The certificate shall be issued or endorsed either by the Administration or any organization duly authorized by it. In every case, the Administration assumes full responsibility for the certificate."
Regulation 7
Issue of a Certificate by another Party
13 Paragraph 1 is amended as follows:
"1 A Party may, at the request of the Administration , cause a ship to be surveyed and, if satisfied that the applicable provisions of this Annex are complied

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SOURCE: MEPC.203(62).pdf
Issue of a Certificate by another Party
13 Paragraph 1 is amended as follows:
"1 A Party may, at the request of the Administration , cause a ship to be surveyed and, if satisfied that the applicable provisions of this Annex are complied with, shall issue or authorize the issuance of an International Air Pollution Prevention Certificate or an International Energy Efficiency Certificate to the ship, and where appropriate , endorse or authorize the endorsement of such certificates on the ship, in accordance with this Annex."
14 Paragraph 4 is amended as follows:
"4 No International Air Pollution Prevention Certificate or International Energy Efficiency Certificate shall be issued to a ship which is entitled to fiy the flag of a State which is not a Party."
RESOLUTION MEPC.203(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 8 -
Regulation 8
Form of Certificate
15 The heading is amended as follows:

"Form of Certificates"

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SOURCE: MEPC.203(62).pdf
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 8 -
Regulation 8
Form of Certificate
15 The heading is amended as follows:
"Form of Certificates"
16 The following subheading is added, and the existing regulation is renumbered as paragraph 1:
"International Air Pollution Prevention Certificate"
17 The following new paragraph 2 is added at the end of the regulation:
"International Energy Efficiency Certificate
2 The International Energy Efficiency Certificate shall be drawn up in a form corresponding to the model given in appendix VIII to this Annex and shall be at least in English, French or Spanish. If an official language of the issuing Party is also used, this shall prevail in case of a dispute or discrepancy."
Regulation 9
Duration and Validity of Certificate
18 The heading is amended as follows:
"Duration and Validity of Certificates"
19 The following subheading is added at the beginning of the regulation:
"International Air Pollution Prevention Certificate"
20 The following is added at the end of the regulation:
"International Energy Efficiency Certificate

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SOURCE: MEPC.203(62).pdf
19 The following subheading is added at the beginning of the regulation:
"International Air Pollution Prevention Certificate"
20 The following is added at the end of the regulation:
"International Energy Efficiency Certificate
10 The International Energy Efficiency Certificate shall be valid throughout the life of the ship subject to the provisions of paragraph 11 below.
11 An International Energy Efficiency Certificate issued under this Annex shall cease to be valid in any of the following cases:
.1 if the ship is withdrawn from service or if a new certificate is issued following major conversion of the ship; or
.2 upon transfer of the ship to the flag of another State. A new certificate shall only be issued when the Government issuing the new certificate is fully satisfied that the ship is in compliance with the requirements of chapter 4 of this Annex. In the case of a transfer between Parties, if requested within three months after the transfer has taken place, the Government of the Party whose flag the ship was formerly entitled to fly shall, as soon as possible, transmit to the Administration copies of the certificate carried by

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SOURCE: MEPC.203(62).pdf

transfer has taken place, the Government of the Party whose flag the ship was formerly entitled to fly shall, as soon as possible, transmit to the Administration copies of the certificate carried by the ship before the transfer and, if available, copies of the relevant survey reports."

RESOLUTION MEPC.203(62)

Adopted on 15 July 2011

AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 9 -

Regulation 10

Port State Control on Operational Requirements

21 A new paragraph 5 is added at the end of the regulation as follows:

"5 In relation to chapter 4 of this Annex, any port State inspection shall be limited to verifying, when appropriate, that there is a valid International Energy Efficiency Certificate on board, in accordance with article 5 of the Convention ."

22 A new chapter 4 is added a/ the end of the Annex as follows:

"CHAPTER 4

REGULATIONS ON ENERGY EFFICIENCY FOR SHIPS

Regulation 19

Application

1 This chapter shall apply to all ships of 400 gross tonnage and above .

2 The provisions of this chapter shall not apply to:

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SOURCE: MEPC.203(62).pdf

"CHAPTER 4

REGULATIONS ON ENERGY EFFICIENCY FOR SHIPS

Regulation 19

Application

1 This chapter shall apply to all ships of 400 gross tonnage and above .

2 The provisions of this chapter shall not apply to:

.1 ships solely engaged in voyages within waters subject to the sovereignty or jurisdiction of the State the flag of which the ship is entitled to fly. However, each Party should ensure, by the adoption of appropriate measures, that such ships are constructed and act in a manner consistent with the requirements of chapter 4 of this Annex , so far as is reasonable and practicable.

3 Regulations 20 and 21 of this Annex shall not apply to ships which have diesel-electric propulsion, turbine propulsion or hybrid propulsion systems.

4 Notwithstanding the provisions of paragraph 1 of this regulation, the Administration may waive the requirement for a ship of 400 gross tonnage and above from complying with regulations 20 and 21 of this Annex.

5 The provision of paragraph 4 of this regulation shall not apply to ships of 400 gross tonnage and above:

.1 for which the building contract is placed on or after 1 January 2017; or

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SOURCE: MEPC.203(62).pdf

5 The provision of paragraph 4 of this regulation shall not apply to ships of 400 gross tonnage and above:

.1 for which the building contract is placed on or after 1 January 2017;
or
.2 in the absence of a building contract, the keel of which is laid or
which is at a similar stage of construction on or after 1 July 2017; or
.3 the delivery of which is on or after 1 July 2019; or
.4 in cases of a major conversion of a new or existing ship, as defined
in regulation 2.24 of this Annex, on or after 1 January 2017, and in
which regulations 5.4.2 and 5.4.3 of this Annex apply.
6 The Administration of a Party to the present Convention which allows
application of paragraph 4, or suspends, withdraws or declines the application of
that paragraph, to a ship entitled to fly its flag shall forthwith communicate to the
RESOLUTION MEPC.203(62)
Adopted on 15 July 2011
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM
SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 10 -
Organization for circulation to the Parties to the present Protocol particulars thereof,
for their information.

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SOURCE: MEPC.203(62).pdf
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM